

June 28, 2024

**VIA ELECTRONIC FILING**

Debbie-Anne A. Reese  
Acting Secretary  
Federal Energy Regulatory Commission  
888 First Street, NE  
Washington, DC 20426

**Re: FirstLight MA Hydro LLC, Turners Falls Project No. 1889;  
Memorandum of Agreement**

Dear Ms. Reese,

FirstLight MA Hydro LLC (“FirstLight”) hereby submits this Memorandum of Agreement (“MOA”) between FirstLight and the U.S. Department of the Interior (“Interior”) regarding the U.S Geological Survey’s (“USGS”) Silvio O. Conte Anadromous Fish Research Center (“Conte Lab”), located adjacent to FirstLight’s Turners Falls Hydroelectric Project (“Project”). FirstLight is submitting the MOA for the Federal Energy Regulatory Commission’s (“Commission”) information only. The MOA is not intended to be a condition of the new Project license.

On May 16, 2024,<sup>1</sup> in response to the Commission’s February 22, 2024 Notice of Application Accepted for Filing, Soliciting Motions to Intervene and Protests, Ready for Environmental Analysis, and Soliciting Comments, Recommendations, Preliminary Terms and Conditions, and Preliminary Fishway Prescriptions for the Project, Interior submitted a reservation of authority under Section 4(e) of the Federal Power Act.<sup>2</sup> Pursuant to the MOA, Interior has agreed to submit a modified reservation of authority consistent with the MOA in consideration for FirstLight’s agreement to make certain changes to an existing easement and water use agreement related to USGS use of the Conte Lab. The fully executed amended agreements are attached to the MOA. Again, neither the MOA nor the amended agreements are intended to become conditions of the new Project license but are an off-license resolution of outstanding issues related to the agreements.

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<sup>1</sup> Comments, Recommendations, Terms and Conditions, and Prescriptions of the U.S. Department of the Interior, Project No. 1889-085 et al. (filed May 16, 2024).

<sup>2</sup> 16 U.S.C. § 797(e).

If you have any questions, please contact the undersigned.

Respectfully submitted,

/s/ Michael A. Swiger  
Michael A. Swiger

Counsel to FirstLight MA Hydro LLC

## **MEMORANDUM OF AGREEMENT**

THIS MEMORANDUM OF AGREEMENT (“MOA”) is made and entered into effective the 24<sup>th</sup> day of June 2024 (“Effective Date”), by and between FirstLight MA Hydro LLC (“FirstLight”) and the U.S. Department of the Interior (“Interior”) on behalf of the U.S. Geological Survey (“USGS”). FirstLight and Interior are collectively referred to herein as the “Parties” and are each individually a “Party.”

### **RECITALS**

#### **WHEREAS**

- A. FirstLight is the Federal Energy Regulatory Commission (“FERC”) licensee of the Turners Falls Hydroelectric Project, FERC Project No. 1889 (“Project”), and is seeking a new license under Section 15 of the Federal Power Act (“FPA”) for the Project.
- B. USGS maintains and operates the Silvio O. Conte Anadromous Fish Research Center (“Conte Lab”) adjacent to the Project. The Conte Lab is not part of the licensed Project.
- C. FirstLight’s predecessors in interest granted an easement over Project lands (“Easement”) and a conveyance of a right to use FirstLight’s power canal to transport certain quantities of water (“Water Use Agreement”) for maintenance and operation of the Conte Lab, copies of which, with their amendments to date, are attached as Exhibits A and B.
- D. The Parties desire to resolve certain issues that have arisen with respect to the allocation of responsibilities and costs in both the Easement and Water Use Agreement.
- E. Interior contends that the Easement and Water Use Agreement constitute federal “reservations” within the meaning of Section 3(2) of the FPA, entitling Interior to submit conditions under Section 4(e) of the FPA necessary for the adequate protection and utilization of the Conte Lab which FERC will be required to include in the new Project license. Interior has submitted a preliminary Section 4(e) condition to FERC reserving its authority to impose such conditions. FirstLight disagrees that Section 4(e) applies to the Project.

### **TERMS OF AGREEMENT**

**NOW, THEREFORE**, in consideration of the foregoing recitals, the Parties agree as follows:

- 1. The Parties have agreed to changes to the Easement and Water Use Agreement in substantially the forms set forth in Exhibits C and D to this MOA, respectively.

2. The Parties agree that the Easement and Water Use Agreement, as amended, will not become conditions or requirements of the FERC license. Upon execution of the revised Easement and Water Use Agreement, Interior agrees within 10 (ten) business days to submit a modified Section 4(e) reservation of authority to FERC as set forth in Paragraph 4 below. FirstLight agrees it will not object to this reservation of authority. Interior agrees not to exercise its reserved authority so long as FirstLight complies with the revised Easement and Water Use Agreement, as the Parties may amend them from time to time henceforth, in the absence of material new information. FirstLight reserves the right to contest any exercise of Interior's reserved authority under then applicable provisions of law, and Interior will not object to FirstLight's exercise of such right to contest such exercise.
3. FirstLight agrees to promptly record the Easement, once executed, in the Franklin County, Massachusetts Registry of Deeds.
4. Interior agrees to submit to FERC the following modified Section 4(e) reservation of authority:

The Licensee shall implement, upon order of the Commission, such additional conditions as may be identified by the Secretary of the Interior over the term of the license pursuant to the authority provided in Section 4(e) of the Federal Power Act, as necessary for the adequate protection and utilization of land and interests in land under the authority of the Department of the Interior, consistent with the terms of the Memorandum of Agreement filed with the Commission on \_\_\_\_\_, 2024 ([FERC Accession Number XXX](#)).
5. This MOA may be executed in counterparts, and each executed counterpart shall have the same force and effect as an original instrument as if both Parties had signed the same instrument. Any signature page of this MOA may be detached from any counterpart of this MOA without impairing the legal effect of any signatures thereon, and may be attached to another counterpart of this MOA identical in form hereto but having attached to it one or more signature pages.
6. This Agreement shall be binding on the successors and assigns of FirstLight, and become binding on any entity assuming the License for the Project. The obligations of this Agreement run only to the United States and such Agencies and Departments thereof as may be assigned the management of the Conte Lab.

*[Remainder of page intentionally left blank; signature  
page follows]*

**IN WITNESS WHEREOF**, FirstLight and Interior have executed this MOA as of the Effective Date first above written.

**FirstLight MA Hydro LLC,**

By: Justin Trudell  
Name: Justin Trudell  
Title: President and Chief Executive Officer  
Address: 100 District Ave, Suite 102  
Burlington, MA 01803

Date: 6/11/2024

**U.S. Department of the Interior, Delegated Authority to USGS  
Regional Director**

**MICHAEL**  
By: TUPPER  
Name: Michael H. Tupper  
Title: U.S. Geological Survey, Regional Director, Northeast Region  
Address: 12201 Sunrise Valley Drive, Reston, VA 20192  
Date: 6/24/2024

Digitally signed by MICHAEL  
TUPPER  
Date: 2024.06.24 10:45:23  
-04'00'

## **EXHIBIT A**

- 2222 -

Doc#  
5926

The Following Is Certified To Be A True Copy Of The Record In

Book 222, Page 154, Franklin County MA Registry of Deeds

Date 5/26/88 Attest Walter T. Kostaschuk

154

### EASEMENT

WESTERN MASSACHUSETTS ELECTRIC COMPANY (the "Grantor"), a corporation duly established under the laws of the Commonwealth of Massachusetts and having its usual place of business at 174 Brush Hill Avenue, West Springfield, Hampden County, Massachusetts in consideration of Twenty-Nine Thousand Seven Hundred Forty (\$29,740) Dollars grants to the United States of America, acting by and through the Secretary of the Interior (the "Grantee"), the following non-exclusive, permanent easement rights, in common with the Grantee, its successors and assigns and all others entitled thereto, to be exercised solely for the following purposes at the Grantee's sole cost and risk over a portion of certain premises located in the town of Montague (Turners Falls), Franklin County, Massachusetts, as more particularly described on Exhibit A, which is attached hereto and made a part hereof, with the improvements authorized by this Easement Agreement to be located approximately as shown on a Plan entitled "United States Department of the Interior, Fish and Wildlife Service, Northeast Anadromous Fish Research Laboratory, Western Massachusetts Electric Company Tracts" prepared by Roger R. Tornstrom, Supervisor, Land Surveyor, Office of Realty, dated December 12, 1986, with a last revision date of February 25, 1988, recorded in the Franklin County Registry of Deeds at Plan Book 69 , Page 80 (the "Plan"). The areas identified upon the Plan as the locations for the improvements to be

- 2222 -

Over  
5926

The Following Is Certified To Be A True Copy Of The Record In

Book 2222 Page 154 Franklin County MA Registry of Deeds

Date 5/26/88 Attest Walter T. Krontz

154

### EASEMENT

WESTERN MASSACHUSETTS ELECTRIC COMPANY (the "Grantor"), a corporation duly established under the laws of the Commonwealth of Massachusetts and having its usual place of business at 174 Brush Hill Avenue, West Springfield, Hampden County, Massachusetts in consideration of Twenty-Nine Thousand Seven Hundred Forty (\$29,740) Dollars grants to the United States of America, acting by and through the Secretary of the Interior (the "Grantee"), the following non-exclusive, permanent easement rights, in common with the Grantee, its successors and assigns and all others entitled thereto, to be exercised solely for the following purposes at the Grantee's sole cost and risk over a portion of certain premises located in the town of Montague (Turners Falls), Franklin County, Massachusetts, as more particularly described on Exhibit A, which is attached hereto and made a part hereof, with the improvements authorized by this Easement Agreement to be located approximately as shown on a Plan entitled "United States Department of the Interior, Fish and Wildlife Service, Northeast Anadromous Fish Research Laboratory, Western Massachusetts Electric Company Tracts" prepared by Roger R. Tornstrom, Supervisor, Land Surveyor, Office of Realty, dated December 12, 1986, with a last revision date of February 25, 1988, recorded in the Franklin County Registry of Deeds at Plan Book 69 , Page 80 (the "Plan"). The areas identified upon the Plan as the locations for the improvements to be



constructed thereon pursuant to this Easement Agreement are referred to herein as the "Easement Area". The rights granted hereby are specifically limited to the Easement Area unless otherwise expressly provided herein. The Easement rights hereby granted by the Grantor to the Grantee are as follows:

1. Roadway

The right to construct, maintain, repair and use a Roadway in the location identified on the Plan as the "Access Road" and the "Service Road" (collectively, the "Roadway") that may be improved up to a width of twenty-five (25) feet, subject to the following conditions:

(a) The Grantee shall construct the Access Road portion of the Roadway in the location shown on the Plan running from G Street to the entrance road of the Grantee's proposed Research Laboratory shown on the Plan. This portion of the Roadway shall be reasonably acceptable to the Grantor and it shall be uniform in design and material, be improved to a minimum width of ten (10) feet and surfaced with gravel.

(b) The Grantee shall construct a Service Road reasonably acceptable to the Grantor in the location shown on the Plan connecting the Access Road to the Grantor's Cabot Station Fish Ladder. This portion of the Roadway shall be uniform in design and material, be improved to a minimum width of ten (10) feet and surfaced with gravel.

(c) The Grantee shall construct and maintain a guard rail system reasonably acceptable to the Grantor in the

location shown on the Plan along the easterly shoulder of the Roadway from the northerly end of the retaining wall of the Grantor's Cabot Station Fish Ladder to the G Street entrance gate to be constructed by the Grantee.

(d) The Grantee shall provide for snow removal and sanding along the Roadway to the extent deemed necessary or appropriate by the Grantee for its use of the Roadway, including without limitation the Access Road and the Service Road. The Grantee shall not have any obligation to provide for snow removal and sanding to satisfy the requirements of the Grantor, and the Grantor shall not have any obligation to provide for snow removal and sanding along the Roadway to satisfy the requirements of the Grantee.

## 2. Gates

The right to construct, maintain, repair and use gates along the Roadway, subject to the following conditions:

(a) The Grantee shall install at least four (4) gates along the Access Road and Service Road at the locations shown on the Plan.

(b) Each gate shall be of suitable size and design to prevent vehicle access to the Roadway and shall have a double-lock system so that each party may install its own locks and have continuous access along the Roadway.

(c) At the close of each day during which the Grantee's laboratory facilities are open, the Grantee shall patrol the Roadway and arrange for the removal of all unauthorized vehicles from the Easement Area. If the Grantor

elects to allow public access for additional periods, it shall notify the Grantee's personnel at the laboratory and the Grantor shall be responsible for removal of vehicles when it closes the Easement Area to public use.

### 3. Loading Area

The right to construct, maintain, repair and use a surfaced area approximately sixty (60') feet by eighty (80') feet at the location shown on the Plan for loading and unloading of materials at the Grantee's Fish Passage Complex. This area shall be separated from the Service Road by means of chain link fencing at least six (6) feet in height, with a gate to allow vehicle access to and from the Service Road.

### 4. Fishway

The right to construct, maintain, repair and use a fishway at the location shown on the Plan from the Grantor's power canal into the Grantee's property abutting the Easement Area on the west. The fishway shall consist of the following:

- (i) A twenty (20') foot by thirty-five (35') foot concrete pad at the shore of the canal;
- (ii) A one hundred (100') foot log boom to be located in the power canal only during the period of April to November;
- (iii) Six (6') foot tall chain link fencing separating the inlet area and facilities from the Easement Area and a gate to allow vehicle access to such facilities;
- (iv) An inlet structure for the fishway and water supply line;
- (v) Trash racks and screens at the entry point of the inlet structure;

- (vi) An overhead crane for cleaning screens associated with the inlet structure;
- (vii) A twenty-five (25') foot floating platform with removable vertical screens to be located in the power canal and operated intermittently to divert downstream migrant fish into the inlet structure. The platform shall be anchored to the inlet structure at the corner of the south wall and by a cable to a point approximately fifty-four (54') feet upstream at the north end of the inlet structure;
- (viii) An eight (8') foot by one hundred two (102') foot concrete fishway located approximately nine hundred (900') feet north of the Grantor's Cabot Station Fishway running westerly to the Grantee's lands adjacent to the Easement Area. The fishway will be designed to use not more than thirty (30) cfs of canal water during operations;
- (ix) A six (6') foot diameter water supply line running from the power canal to the Fish Passage Complex. The supply line shall be designed to use no more than two hundred (200) cfs of canal water during operations; and
- (x) A bridge to accomodate the passage of the fishway beneath the Service Road. The bridge shall meet at least HS-20 loading, be twenty-two (22') feet wide, have concrete approach ramps, use heavy duty bridge grating, and include guard rails.

The Grantee's exercise of these rights shall be subject at all times to the following:

(a) The use of the Grantor's power canal to transport water to the Grantee's intake facilities shall be subject to such conditions and requirements for reimbursement as the parties may from time to time agree upon.

(b) The Grantee shall install and maintain monitoring devices that will continuously measure the quantity of water flowing through the inlet structure, and

make such measurements available to the Grantor at least monthly during the periods the Grantee takes water from the Grantor's power canal.

(c) Upon notice from the Grantor that the Grantee's use of the intake structure or associated facilities adversely affects the Grantor's compliance with its obligations concerning the minimum flow of waters or migration of fish within its power canal as determined by the Grantor in its reasonable discretion, the Grantee shall immediately undertake mitigation measures (including but not limited to removal of all facilities from the power canal and cessation of use of the waters of the power canal) to eliminate the adverse effect. The Grantee shall reimburse the Grantor for all costs reasonably incurred to alter its business operations or otherwise accommodate each such adverse effect.

##### 5. Turn-Around Area

The right to construct, maintain, repair and use a surfaced turn-around area in the location shown on the Plan at the southerly portion of the Easement Area adjacent to the Grantor's Cabot Station Fishway Trap. The turn-around area shall be approximately 50' x 60' to allow nineteen (19) foot long fish haul trucks to turn around and maneuver in the area of the fish trap to be constructed by the Grantee. As part of its construction of the turn-around area, the Grantee shall install a retaining wall along the easterly edge of the turn-around area.

6. Gravel Parking Area

The right to construct, maintain, repair and use a gravel parking area in the location shown on the Plan approximately one hundred twenty-five (125) feet wide and seventy (70') feet deep, located between the Roadway and the Fish Passage Complex. The Grantee shall have the further right to construct, maintain, repair and use a visitor walkway and awning in the location shown on the Plan within five (5') feet of and parallel to the westerly boundary of the Gravel Parking Area.

7. Upstream Migrant Fish Trap

(a) The right to construct, maintain, repair and use a fish trap consisting of a hopper, guides, hoist and hoist superstructure to be located at the northerly end of the Grantor's fish ladder in the location shown on the Plan.

(b) The right to modify the Grantor's counting station by means of a three (3') foot by thirteen (13') foot addition to allow relocation of the viewing window. The Grantee shall have the further right to install and obligation to maintain control facilities for its upstream migrant fish trap within a five (5') foot by seven (7') foot portion of the walls of the counting station at a location to be selected by the Grantor.

8. Fish Transport Flume

The right to construct, maintain, repair and use a seven (7) foot wide by six (6) foot deep concrete fish transport flume at the location shown on the Plan within a

strip of land thirty-five (35') feet in width running from the Grantor's existing fish ladder to the Grantee's Burrows Ponds southerly of the Fish Passage Complex. Interconnection with the Grantor's fish ladder shall be by means of facilities and at a location approved by the Grantor in its sole discretion.

9. Water Discharge Facilities

The right to construct, maintain, repair and use the following facilities within a one hundred (100') foot wide strip of land in the location designated as Area 10M1 on the Plan:

- (i) One (1) fifty-four (54") inch diameter buried pipe.
- (ii) Riprap within an area approximately one hundred thirty (130') feet long by thirty (30') feet widening to eighty (80') feet wide to establish an outfall ditch at the Connecticut River end of the discharge pipe that is suitable for vehicle passage.

10. Utilities

The right to construct, maintain, repair and use underground communications and domestic water distribution facilities within the Easement Area at locations to be mutually agreed to by the Grantor and the Grantees.

BY ACCEPTANCE of this easement, the Grantee, for itself and on behalf of the successors and assigns, hereby agrees that the following conditions shall apply to its exercise of the rights granted herein:

- (a) The Grantee shall undertake no work within the Easement Area until such work has been approved in writing by

the Grantor, which approval shall not be unreasonably delayed or withheld. The Grantor shall provide its response to each such request for its approval within thirty (30) days following the receipt by the Grantor of each request for approval submitted by the Grantee. It is the specific intention of the parties that the Grantor shall have the right to condition its consent to assure that the Grantee's exercise of the rights granted herein do not materially, adversely affect the Grantor's improvements and facilities and the use, repair, maintenance, replacement and operation thereof now or in the future installed by the Grantor within the Easement Area for its business purposes. As a condition to any approval, the Grantee shall submit detailed plans of the work and a description of work procedures. The Grantor's approval of any work or work procedure merely indicates its consent to the proposed activity and does not constitute a representation or warranty concerning the suitability, prudence, effectiveness or propriety of the proposed activity.

(b) The Grantee shall acquire all permits, authorizations or other consents that may be required by any Federal, state or local governmental body.

(c) All work undertaken by the Grantee shall be in compliance with all applicable Federal, state and local laws, ordinances, rules, regulations and orders.



(d) Following completion of any work in the Easement Area, the Grantee shall restore the surface of the lands substantially to the condition existing prior to Grantee's exercise of any rights granted herein.

(e) Once constructed, the Grantee shall maintain all facilities in good, safe and lawful condition.

(f) In the event of erosion or washout within the Easement Area due to the exercise of the rights granted herein, the Grantee shall repair same or in the alternative request that such work be performed by the Grantor, in which case the Grantee shall reimburse the Grantor for all costs reasonably incurred for such restoration.

(g) Upon notice from the Grantor that its business requires all or any portion of the Grantee's facilities to be altered or relocated, and upon the Grantor conveying adequate easement rights together with its agreement to reimburse the Grantee for its reasonable costs, the Grantee shall promptly make such alteration or relocation in full cooperation with the Grantor.

(h) The Grantee shall exercise the easement rights granted herein in such a way as to avoid interference with the Grantor's canal, electrical or other facilities now or hereafter installed within the Easement Area and shall not, except with written permission of the Grantor, build any structure or other improvement, excavate, fill, flood, grade, pave, plant trees or shrubbery within the vicinity of the

Grantor's facilities, or attach anything to the Grantor's facilities. The Grantor may, without liability to the Grantee, correct, remove or dispose of any improvements, excavation, filling, flood, grading, paving or planting that violates the conditions of this Easement.

(i) Nothing contained herein shall be construed as binding the Grantee to expend in any one fiscal year any sum in excess of appropriations made by congress or administratively allocated for the purpose of this document for the fiscal year, or to involve the Grantee in any contract or other obligation for the further expenditure of money in excess of such appropriations or allocations, however, this shall not in any way limit the right of the Grantor to seek legal redress for any actions of the Grantee which may adversely affect its property, facilities and/or power generation activities.

EXCEPTING AND RESERVING to the Grantor, its successors and assigns, (i) the rights to enter upon, use and otherwise have access to the Easement Area for its business purposes (including but not limited to the right to establish access driveways to any roadways constructed within the Easement Area, the rights of ingress and egress for the Grantor's personnel or members of the public, materials, equipment and vehicles over all roadways constructed within the Easement Area, the turn-around area, and any parking areas), (ii) the right to approve and condition all construction activities of

the Grantee affecting a strip of land fifteen (15') wide, the center line of which is shown on the Plan as "Proposed Underground Power-Line", generally along the westerly line of the Service Road approximately from the southerly end of the Access Road to a point easterly of the Grantee's abutting property, and (iii) the rights to flow water by means of flooding, seepage, percolation or otherwise over, under and across the Easement Area from time to time to such extent as may be caused by the Grantor's operation, maintenance, reconstruction, repair or other lawful activities conducted in its operation of its hydroelectric generating facilities presently licensed by the Federal Energy Regulatory Commission as Project No. 1889. Nothing herein shall restrict or otherwise alter the Grantor's rights to maintain, repair, reconstruct and otherwise use its power canal or by means of flooding or flowing of water, ice or other materials to deposit such water, ice or other materials along, over, under and across the Easement Area.

The rights granted herein shall be binding upon and inure to the benefit of the Grantor and the Grantee, their successors and assigns.

IN WITNESS WHEREOF, the said WESTERN MASSACHUSETTS ELECTRIC COMPANY has caused its corporate seal to be affixed and these presents to be signed and acknowledged in its name and behalf by Harrie R. Nims one of its Vice Presidents and C. Thayer Browne its Treasurer as of the 25<sup>th</sup> day of

May, 1988.

WESTERN MASSACHUSETTS ELECTRIC  
COMPANYBy *Harrie R. Nims*  
Harrie R. Nims,  
Its Vice PresidentBy *C. Thayer Browne*  
C. Thayer Browne  
Its TreasurerBy *Cheryl W. Grise*  
Cheryl W. Grise  
Its Assistant Clerk

STATE OF CONNECTICUT )  
COUNTY OF NEW HAVEN )

ss. MERIDEN MAY 25, 1988

On this 25<sup>th</sup> day of MAY, 1988, before me, the undersigned officer, personally appeared Harrie R. Nims, who acknowledged himself to be one of the Vice Presidents of Western Massachusetts Electric Company, a corporation, and that he, as such officer, being authorized so to do, executed the foregoing instrument for the purposes therein contained, by signing the name of the corporation as the free act and deed of said corporation.

In Witness Whereof, I hereunto set my hand and official seal.

Barbara C. Bartalotta  
Notary Public BARBARA C. BARTALOTTA  
My Commission Expires: MARCH 31, 1991

STATE OF CONNECTICUT )  
COUNTY OF )

ss.

On this 25<sup>th</sup> day of MAY, 1988, before me, the undersigned officer, personally appeared C. Thayer Browne, who acknowledged himself to be the Treasurer of Western Massachusetts Electric Company, a corporation, and that he, as such officer, being authorized so to do, executed the foregoing instrument for the purposes therein contained, by signing the name of the corporation as the free act and deed of said corporation.

In Witness Whereof, I hereunto set my hand and official seal.

Margaret J. Rothwell  
Notary Public  
My Commission Expires: 3/31/91

2,25/47

EXHIBIT A

UNITED STATES  
DEPARTMENT OF THE INTERIOR  
FISH AND WILDLIFE SERVICE  
OFFICE OF REALTY

TRACT DESCRIPTION  
OF THE  
WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACTS  
(10,R,M,M-1)  
FRANKLIN COUNTY, MASSACHUSETTS  
NORTHEAST ANADROMOUS FISH RESEARCH LABORATORY  
CONTAINING 25.64 ACRES

REPORT PREPARED BY  
Roger R. Tornstrom  
Land Surveyor  
December, 1986

Revised February, 1988

DESCRIPTION  
OF THE  
WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACTS  
(10, R, M, M-1)  
FRANKLIN COUNTY, MASSACHUSETTS

The hereinafter-described four (4) tracts of land are located in the Commonwealth of Massachusetts, Franklin County, Town of Montague, situate approximately 1.5 miles southwesterly of Turners Falls, being a portion of the land conveyed to the Western Massachusetts Electric Company, a Massachusetts corporation, from the Turners Falls Power and Electric Company, a Massachusetts corporation, in a Deed dated December 30, 1942, recorded in Book 856, Page 174, on file at the Registry of Deeds of said County and Commonwealth at Greenfield, and being more particularly described as follows:

TRACT 10

BEGINNING at Corner 194, a standard USF&WS aluminum monument set and marked, "COR. 194 TR. 10 W.M.E.C. 1986", from which the center line intersection of 15th and "G" Streets, bears N 54° 01'E, 3,609 feet, more or less; thence S 16° 54' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10R), 347.44 feet to Corner 193, a standard USF&WS aluminum monument set and marked, "COR. 193 TR. 10 W.M.E.C. 1986"; thence S 04° 16' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10R), 175.00 feet to Corner 211, a standard USF&WS aluminum monument set and marked, "COR. 211 TR. 10 W.M.E.C. 1986"; thence S 04° 16' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 507.39 feet to Corner 205, a standard USF&WS aluminum monument set and marked, "COR. 205 TR. 10 W.M.E.C. 1986"; thence S 04° 16' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 100.47 feet to Corner 204, a standard USF&WS aluminum monument set and marked, "COR. 204 TR. 10 W.M.E.C. 1986"; thence S 04° 16' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 30.00 feet to Corner 199, a standard USF&WS aluminum monument set and marked, "COR. 199 TR. 10 W.M.E.C. 1986"; thence S 01° 43' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 101.02 feet



to Corner 197, a standard USF&WS aluminum monument set and marked, "COR. 197 TR. 10 W.M.E.C. 1986"; thence S 02° 24' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 103.59 feet to Corner 203, a standard USF&WS aluminum monument set and marked, "COR. 203 TR. 10 W.M.E.C. 1986"; thence S 87° 36' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 127.09 feet to Corner 174, a standard USF&WS aluminum monument set and marked, "COR. 174 TR. 10 W.M.E.C. 1986"; thence N 35° 20' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M-1), 100.00 feet to Corner 172, a standard USF&WS aluminum monument set and marked, "COR. 172 TR. 10 W.M.E.C. 1986"; thence N 59° 15' W, along other lands of the Western Massachusetts Electric Company, 193.68 feet to Corner 171, a standard USF&WS aluminum monument set and marked, "COR. 171 TR. 10 W.M.E.C. 1986"; thence N 62° 02' W, along other lands of the Western Massachusetts Electric Company, 166.63 feet to Corner 170, a standard USF&WS aluminum monument set and marked, "COR. 170 TR. 10 W.M.E.C. 1986"; thence N 71° 43' W, along other lands of the Western Massachusetts Electric Company, 311.79 feet to Corner 169, a standard USF&WS aluminum monument set and marked, "COR. 169 TR. 10 W.M.E.C. 1986"; thence N 08° 56' W, along other lands of the Western Massachusetts Electric Company, 111.66 feet to Corner 168, a standard USF&WS aluminum monument set and marked, "COR. 168 TR. 10 W.M.E.C. 1986"; thence N 33° 51' E, along other lands of the Western Massachusetts Electric Company, 184.74 feet to Corner 167, a standard USF&WS aluminum monument set and marked, "COR. 167, TR. 10 W.M.E.C. 1986"; thence N 15° 36' W, along other lands of the Western Massachusetts Electric Company, 134.74 feet to Corner 166, a standard USF&WS aluminum monument set and marked, "COR. 166 TR. 10 W.M.E.C. 1986"; thence N 06° 52' E, along other lands of the Western Massachusetts Electric Company, 202.01 feet to Corner 165, a standard USF&WS aluminum monument set and marked, "COR. 165 TR. 10 W.M.E.C. 1986", thence N 45° 48' E, along other lands of the Western Massachusetts Electric Company, 183.37 feet to Corner 164, a standard USF&WS aluminum monument set and marked, "COR. 164 TR. 10 W.M.E.C. 1986"; thence N 49° 58' E, along other lands of the Western Massachusetts Electric Company, 407.88 feet to Corner 163, a standard USF&WS aluminum monument set and marked, "COR. 163 TR. 10 W.M.E.C. 1986", thence N 57° 47' E, along other lands of the Western Massachusetts Electric Company, 283.42 feet to Corner 162, a standard USF&WS aluminum monument set and marked, "COR. 162 TR. 10 W.M.E.C. 1986"; thence S 54° 52' E, along other lands of the Western Massachusetts Electric Company, 241.69 feet to the PLACE OF BEGINNING, containing 20.0 acres, more or less.

#### TRACT 10R

Being a right-of-way, from the terminus of "G" Street to the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), through other lands of the Western Massachusetts Electric Company, the said right-of-way is more particularly described as follows:



BEGINNING at Corner 211, a standard USF&WS aluminum monument, also being Corner 211, of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10); thence N 04° 16' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 175.00 feet to Corner 193, a standard USF&WS aluminum monument; thence N 16° 54' E along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 347.44 feet to Corner 194, a standard USF&WS aluminum monument; thence N 54° 52' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 45.49 feet to Corner 235, a standard USF&WS aluminum monument set; thence N 45° 39' E, along other lands of the Western Massachusetts Electric Company, 420.45 feet to Corner 237, a standard USF&WS aluminum monument set; thence N 58° 25' E, along other lands of the Western Massachusetts Electric Company, 1,402.79 feet to Corner 238, a standard USF&WS aluminum monument set; thence N 71° 09' E, along other lands of the Western Massachusetts Electric Company, 270.50 feet to Corner 242, a standard USF&WS aluminum monument set; thence N 88° 51' E, along other lands of the Western Massachusetts Electric Company, 392.50 feet to Corner 221, a standard USF&WS aluminum monument set and marked, "COR. 221 W.M.E.C. TR. 10R 1986," thence N 40° 16' E, along other lands of the Western Massachusetts Electric Company, in part, and land of Unknown Owners, in part, 1,238.10 feet to Corner 220, a standard USF&WS aluminum monument set and marked, "COR. 220 TR. 10R 1986", the said monument is also on the northwesterly edge of "G" Street and the southwesterly edge of 15th Street; thence S 49° 44' E, along the southwesterly edge of 15th Street, passing on line, a drill hole set in a large rock at 16.0 feet, continuing a total distance of 60.0 feet to Corner 219, a drill hole set in a large rock; thence N 40° 16' E, along the southeasterly edge of "G" Street, 60.0 feet to Corner 218, a 4" x 4" concrete monument found; thence S 49° 46' E, along land of Unknown Owners, passing on line, a 4" x 4" concrete monument found at 109.6 feet, continuing a total distance of 134.3 feet, more or less, to Corner 222, on the westerly normal operating water level of the power canal; thence Southwesterly, along the meanders of the westerly normal operating water level of the power canal, 4,200 feet, more or less, to Corner 223; thence N 85° 44' W, leaving the power canal, passing on line at 7 feet, more or less, a standard USF&WS aluminum monument set and marked, "W.C. 212 W.M.E.C. TR. 10R 1986", and along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10M), 52.0 feet, more or less, to the PLACE OF BEGINNING.

#### TRACT 10M

BEGINNING at Corner 211, a standard USF&WS aluminum monument marked, "COR. 211 TR. 10 W.M.E.C. 1986", being Corner 211, of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10R); thence S 85° 44' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10R), 52.0 feet, more or less, to Corner 223, at the westerly normal operating water level of the power canal, from which a standard USF&WS aluminum monument marked, "W.C. 212 TR. 10R W.M.E.C. 1986", bears N 85° 44' W, 7 feet, more or less; thence Southerly, along the meanders of the westerly normal operating water level of the power canal, 533 feet, more

or less, to Corner 198, from which a standard USF&WS aluminum monument set and marked, "W. COR. 198 TR. 10M 1987" bears N 80° 09' W, 5 feet, more or less; thence S 80° 09' E, into the power canal, 100.00 feet to Corner 1010; thence S 08° 50' W, 100.02 feet to Corner 1011; thence N 80° 09' W, 100.00 feet to Corner 191, at the westerly normal operating water level of the power canal, from which a standard USF&WS aluminum monument set and marked, "W. COR. 191 TR. 10M 1987", bears N 80° 09' W, 2 feet, more or less; thence Southerly, along the westerly normal operating water level of the power canal, 920 feet, more or less, to Corner 1012, at the northerly edge of the wasteway; thence Westerly, along the northerly edge of the wasteway, 74 feet, more or less, to Corner 1013, being 20 feet, easterly of the east edge of the fishladder; thence Southerly, parallel to and 20 feet easterly, of the east edge of the fishladder, 148 feet, more or less, to Corner 1014, at the center line of the attraction water supply channel; thence Westerly, along the center line of the attraction water supply channel, 160 feet, more or less, to Corner 1015, at the easterly ordinary low water line of the Connecticut River; thence Northerly, along the easterly ordinary low water line of the Connecticut River, 148 feet, more or less, to Corner 196; thence N 36° 31' E, along other land of the Western Massachusetts Electric Company, 176.01 feet to Corner 180, a standard USF&WS aluminum monument set and marked, "COR. 180 TR. 10M 1987"; thence N 05° 11' E, along other land of the Western Massachusetts Electric Company, 395.70 feet to Corner 176, a standard USF&WS aluminum monumnet set and marked, "COR. 176 TR. 10M 1987"; thence N 22° 27' W, along other land of the Western Massachusetts Electric Company, 113.05 feet to Corner 174, a standard USF&WS aluminum monument marked, "COR. 174 TR. 10 W.M.E.C. 1986"; thence N 87° 36' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 127.09 feet to Corner 203, a standard USF&WS aluminum monument marked, "COR. 203 TR. 10 W.M.E.C. 1986"; thence N 02° 24' W, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 103.59 feet to Corner 197, a standard USF&WS aluminum monument marked, "COR. 197 TR. 10 W.M.E.C. 1986"; thence N 01° 53' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 101.02 feet to Corner 199, a standard USF&WS aluminum monument marked, "COR. 199 TR. 10 W.M.E.C. 1986"; thence N 04° 16' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10) passing on line, two (2) standard USF&WS aluminum monuments at 30.00 feet and marked, "COR. 204 TR. 10 W.M.E.C. 1986" and at 130.47 feet and marked, "COR. 205 TR. 10 W.M.E.C. 1986", continuing a total distance of 637.86 feet to the PLACE OF BEGINNING, containing 5.16 acres, more or less.

#### TRACT 10M-1

BEGINNING at Corner 174, a standard USF&WS aluminum monument marked, "COR. 174 TR. 10 W.M.E.C. 1986", being Corner 174, of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACTS (10,M); thence S 54° 40' W, along other land of the Western Massachusetts Electric Company, 191 feet, more or less, to Corner 1016, at the easterly ordinary low water line of the Connecticut River, from which a standard USF&WS aluminum monument set as a witness and

marked, "W. COR. 1016 MON. 175 TR. 10M1 1987", bears N 54° 40' E, 5 feet, more or less; thence Northwesterly, along the meanders of the easterly ordinary low water line of the Connecticut River, 104 feet, more or less, to Corner 1017, from which a standard USF&WS aluminum monumnet set as a witness and marked, "W. COR. 1017 MON. 173 TR. 10M1 1987" bears N 54° 40' E, 18 feet, more or less; thence N 54° 40' E, along other land of the Western Massachusetts Electric Company, 203 feet, more or less, to Corner 172, a standard USF&WS aluminum monument marked, "COR. 172 TR. 10 W.M.E.C. 1986"; thence S 35° 20' E, along land of the WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACT (10), 100.00 feet to the PLACE OF BEGINNING, containing 0.48 acres, more or less.

The above-described four (4) tracts of land, containing, in the aggregate, 25.64 acres, more or less, are delineated on a map tracing designated WESTERN MASSACHUSETTS ELECTRIC COMPANY TRACTS (10,R,M,M-1) bearing date of December 12, 1986, revised February 25, 1988 of record in the files Department of the Interior. A print from that map tracing is attached.

Enclosure C

CONVEYANCE OF LIMITED INTEREST IN REAL ESTATE

Turners Falls Project.  
FERC Project No. 1889 - 009

Western Massachusetts Electric Company

## **EXHIBIT B**



CONVEYANCE OF LIMITED INTEREST  
IN REAL PROPERTY FOR A TERM OF YEARS

BY THIS CONVEYANCE made this 25th day of MA., 1988 between WESTERN MASSACHUSETTS ELECTRIC COMPANY, as Conveyor, a corporation duly established under the laws of the Commonwealth of Massachusetts and having its usual place of business at 174 Brush Hill Avenue, West Springfield, Hampden County, Massachusetts, and the United States of America, acting by and through the Secretary of the Interior, and having its office at One Gateway Center, Newton Corner, Middlesex County, Massachusetts, as Conveyee, the Conveyor for the consideration hereinafter recited, has conveyed to the Conveyee the right to use, solely for the purposes and under the terms and conditions hereinafter set forth, the Conveyor's power canal, as delineated on the map designated as Exhibit A, which is attached hereto and made a part hereof.

In consideration of said demise, and of the mutual covenants and undertakings hereinafter expressed, the parties covenant and agree as follows:

1. This Conveyance shall commence as of the date the Northeast Anadromous Fish Research Laboratory begins operation, but no later than January 1, 1991 and shall continue for a period of ten (10) years.
2. Conveyee shall have the right to extend this Conveyance for successive periods of ten (10) years upon the parties agreement on the consideration to be paid for each such extended term. The parties shall begin good faith negotiations to establish the value of such Conveyance extensions promptly following Conveyee's written notice given at least one hundred eighty (180) days prior to the end of the then current term of this conveyance. Such notice shall be given no sooner than one (1) year prior end of a term.
3. The consideration for the first ten year term of this Conveyance shall be a one-time payment of One Hundred Fifty Thousand (150,000) Dollars to be made on or before the commencement date of this Conveyance.
4. During each year of this conveyance, Conveyee may utilize Conveyor's power canal to transport certain quantities of water as described in Exhibit B, which is attached hereto and made a part hereof, from the Connecticut River to Conveyee's Northeast Anadromous Fish Research Facility.
5. Conveyee shall meter all water passing through Conveyor's power canal for use at Conveyee's facilities. Water use, expressed in monthly cubic

feet per second hours for each calendar year, shall be reported to Conveyor by January 15th of the following year. If, within any calendar year during the term of this agreement water use during any month is anticipated to differ from, or actually differs from the monthly amounts described on Exhibit B, Conveyor and Conveyee shall meet to negotiate either compensating reductions or increases in water use during other months, or additional payments by Conveyee as compensation to Conveyor for any additional transportation services in excess of the total yearly amount described on Exhibit B. When volumes of water are spilling over Turners Falls Dam in excess of Conveyor's minimum flow requirements, Conveyor will, at no additional charge, transport additional volumes of water up to the Northeast Anadromous Fish Research Facility's design maximum use of 200 cfs if Conveyor is able to transport such volumes through its power canal and continue to meet its full generating requirements, as determined by Conveyor in his reasonable discretion.

6. The rights granted under this Conveyance are subject to (i) the minimum flow obligations now or in the future applicable to Conveyor's use of the power canal, (ii) the specific approval of the requirements of the Federal Energy Regulatory Commission or other governmental agencies with jurisdiction over Conveyor's use of the power canal, and (iii) reduction or interruption in use required to accommodate Conveyor's construction, maintenance or repair of the power canal. Conveyee shall install and maintain a headgate at its intake facility so that it can terminate its use of the power canal upon Conveyor's request. Conveyee shall fully cooperate with Conveyor in accommodating reductions or termination in the use of waters from the power canal due to Conveyor's construction, maintenance or repair work.
7. Conveyee acknowledges that (i) Conveyor does not warrant the quality or adequacy of waters for Conveyee's needs. (ii) Conveyee's use of waters flowing through the power canal at its sole risk, and (iii) Conveyee hereby waives any claim it may have against Conveyor or its affiliates for injury or damages caused by Conveyee's use of such waters.
8. Pursuant to Section 22, Title 41, United States Code, the parties agree that no Member of or Delegate to Congress, or Resident Commissioner, after his election or appointment, and either before or after he has qualified and during his continuance in office, shall be admitted to any share or part of this Conveyance or to any benefit to arise thereupon.



IN TESTIMONY WHEREOF, the parties hereto have executed this instrument the day and year first above mentioned.

WESTERN MASSACHUSETTS ELECTRIC  
COMPANY

By Harrie R. Nims  
Harrie R. Nims  
One of Its Vice Presidents

By C. Thayer Browne  
C. Thayer Browne  
Its Treasurer

UNITED STATES FISH AND WILDLIFE  
SERVICE

By Richard N. Smith 5/31/88  
Richard N. Smith  
Regional Director, Region 8  
Fish and Wildlife Service  
Department of the Interior

STATE OF CONNECTICUT )  
COUNTY OF NEW HAVEN )

SS. MERIDEN MAY 25, 1988

ON this 25 TH day of MAY, 1988,  
before me, the undersigned officer, personally appeared Harrie  
R. Nims who acknowledged himself to be one of the Vice  
Presidents of Western Massachusetts Electric Company, a  
corporation, and that he, as such officer, being authorized so  
to do, executed the foregoing instrument for the purposes  
therein contained, by signing the name of the corporation as  
free act and deed of said corporation.

IN WITNESS WHEREOF, I hereunto set my hand and official  
seal.

Barbara C. Bartalotta  
Notary Public BARBARA C. BARTALOTTA  
My Commission Expires:

MARCH 31, 1991

STATE OF CONNECTICUT

COUNTY OF

)  
)  
)

ss.

ON this 25<sup>th</sup> day of May, 1988,  
before me, the undersigned officer, personally appeared C.  
Thayer Browne, who acknowledged himself to be the Treasurer of  
Western Massachusetts Electric Company, a corporation, and that  
he, as such officer, being authorized so to do, executed the  
foregoing instrument for the purposes therein contained, by  
signing the name of the corporation as free act and deed of said  
corporation.

IN WITNESS WHEREOF, I hereunto set my hand and official  
seal.

Margaret J. Rothwell  
Notary Public  
My Commission Expires: 3/31/91

UNITED STATES OF AMERICA

DISTRICT OF COLUMBIA

)  
)  
)

ss.

I, \_\_\_\_\_ a notary public in and  
for the District of Columbia, do hereby certify that Richard N.  
Smith, party to a certain instrument bearing date on the \_\_\_\_\_  
day of \_\_\_\_\_, and hereto annexed, personally appeared  
before me in said District, the said Richard N. Smith, being  
personally well known to me as the person who executed the said  
deed, and acknowledged the same to be his act and deed.

GIVEN under my hand and seal this \_\_\_\_\_ day of  
\_\_\_\_\_, 19\_\_\_\_.

\_\_\_\_\_  
Notary Public [Seal]

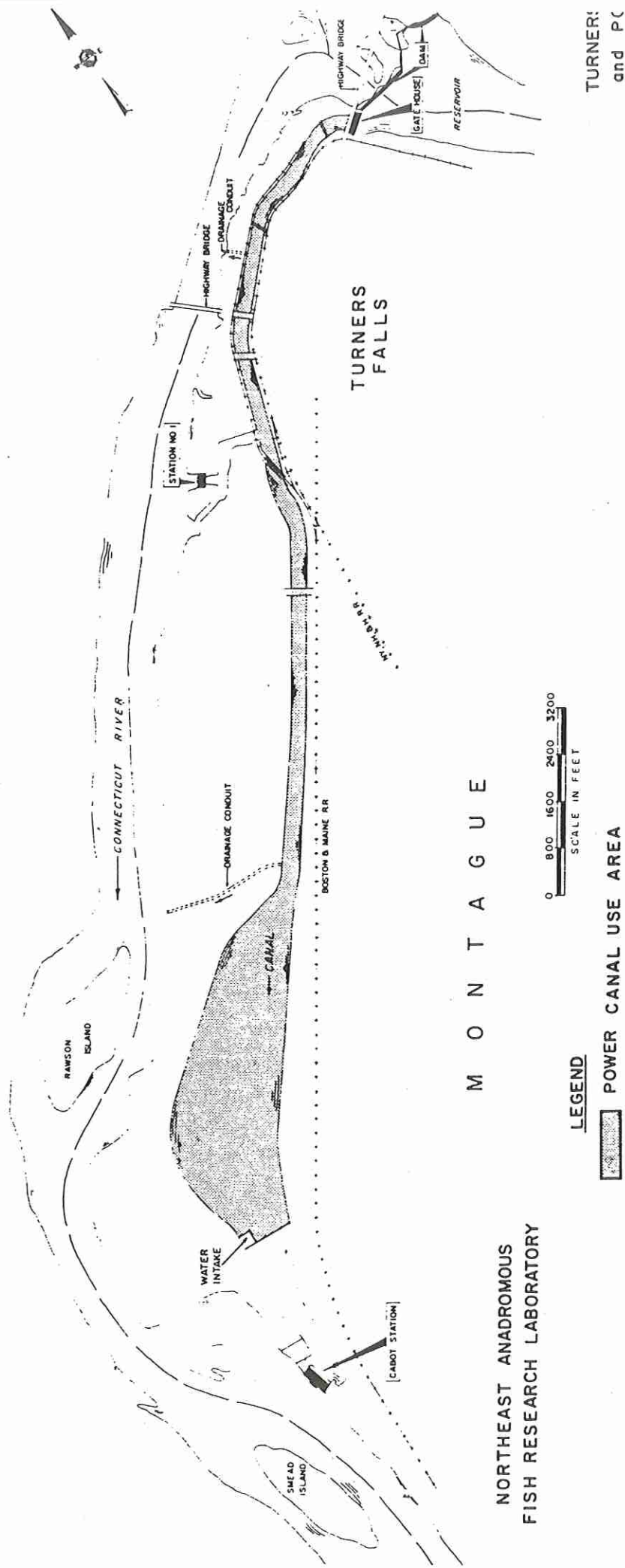
Exhibit B

Northeast Adadromous Fish Research Laboratory  
Monthly Water Usage

| <u>Month</u> | <u>CFS</u> | <u>Days Use</u> | <u>Cfs-Hrs</u> |
|--------------|------------|-----------------|----------------|
| January      | 2          | 31              | 1500           |
| February     | 2          | 28              | 1300           |
| March        | 20         | 15              | 7200           |
| April        | 200        | 15              | 72000          |
| May          | 200        | 10              | 48000          |
| June         | 30         | 15              | 10800          |
| July         | 200        | 10              | 48000          |
| August       | 2          | 31              | 1500           |
| September    | 30         | 15              | 10800          |
| October      | 200        | 13              | 62400          |
| November     | 200        | 7               | 33600          |
| December     | 2          | 31              | 1500           |

Maximum rate of water usage shall not exceed 200 cfs

GREENFIELD



TURNER:  
and PC  
TURNERS

EXHIBIT "A"

ate: 3/25/88



**Northeast  
Generation Services**

The Northeast Utilities System

Northfield Mountain Station  
99 Millers Falls Road  
Northfield, MA 01360  
(413) 659 - 4489  
Fax: (413) 659 - 4459  
Internet: howarjs@nu.com

John S. Howard  
*Station Manager*

December 30, 2002

Jeannette M. Nicholson  
Secretary to the Center Director  
US Geological Survey  
Leetown Science Center  
11700 Leetown Road  
Kearneysville, West Virginia 25430

Dear Jeanette:

Please find enclosed an executed copy of the AMENDMENT AND EXTENSION OF  
CONVEYANCE OF LIMITED INTEREST IN REAL PROPERTY FOR A TERM OF YEARS  
between Northeast Generation Company and the US Geological Survey, Biological Resources  
Discipline at the Silvio O. Conte Anadromous Fish Research Center in Turners Falls, MA.

If you have any questions, or need additional information, please contact me.

Sincerely,

John S. Howard

c: Stephen G. Rideout, Conte Lab, w/attachment



AMENDMENT AND EXTENSION OF  
CONVEYANCE OF LIMITED INTEREST IN REAL PROPERTY FOR A TERM OF YEARS

THIS AMENDMENT AND EXTENSION OF CONVEYANCE OF LIMITED INTEREST IN REAL PROPERTY FOR TERM OF YEARS, dated as of January 1, 2001 (the "Extension"), by and between Northeast Generation Company ("NGC"), a corporation duly established under the laws of Connecticut and authorized to do business in the Commonwealth of Massachusetts and having its executive office and mailing address at 107 Selden Street, Berlin, Connecticut, 06037 (successor in interest to Western Massachusetts Electric Company ("WMECO")), as conveyor, and the United States of America, acting by and through the Secretary of the Interior, U.S. Geological Survey, Biological Resources Discipline, having an office at the Silvio O. Conte Anadromous Fish Research Center ("Conte Lab"), P.O. Box 796, One Migratory Way, Turners Falls, Massachusetts, 01376, as conveyee.

WITNESSETH:

WHEREAS, NGC and Conte Lab are parties to a Conveyance of Limited Interest in Real Property for a Term of Years (the "Agreement"), attached hereto as Exhibit A; and

WHEREAS, the initial term of the Agreement commenced on January 1, 1991 for a period of ten (10) years; and

WHEREAS, the Agreement provides that Conte Lab shall have the right to extend the conveyance upon agreement on the consideration to be paid for each such extended term; and

WHEREAS, in accordance with the Agreement, Conte Lab has advised NGC of its exercise of the right to extend the conveyance; and

WHEREAS, Conte Lab's water use over the initial term of the Agreement has been significantly less than estimated by the parties;

WHEREAS, NGC and Conte Lab mutually desire to extend the term of the Agreement, recognize the difference between Conte Lab's water use over the initial term of the Agreement and that estimated by the parties, and establish the consideration to be paid for the extended term;

NOW THEREFORE, in consideration of the promises and the mutual covenants and agreements herein contained, NGC and Conte Lab hereby agree as follows:

1. NGC's predecessor, WMECO, conveyed to Conte Lab the right to use the Turners Falls power canal solely for the purposes and under terms and conditions set forth in the Agreement.

2. Pursuant to the Agreement, Conte Lab paid NGC's predecessor, WMECO, \$150,000 for originally estimated water use of approximately 2,986,000 cubic feet per second ("cfs") hours over the initial term of the Agreement. Conte Lab has used approximately 852,355 cfs hours of water from the Turners Falls power canal, compared to estimated use of 2,986,000 cfs hours of water. Based on the original assumption of the cost of lost generation, approximately \$14 per Mwh, NGC agrees and hereby grants to Conte Lab a credit of \$107,187.00 for unused water over



the initial term of the Agreement. This credit shall not be considered an amount due and owing from NGC or WMECO and payable in cash to Conte Lab upon demand. The credit shall only be applied to future water use from the Turners Falls canal in accordance with the terms and conditions of the Agreement and this Amendment and Extension.

3. To reflect Conte Lab's current estimate of anticipated water use and the water use allowed by the Agreement and this Amendment and Extension, Exhibit B to the Agreement is revised and attached hereto as Exhibit B, Revision 1.

4(a). During the term of this extension, Conte Lab shall pay NGC an amount for water use equal to the value of the water had it been used by NGC for generation. The value of the water for generation shall be equal to the Monthly Average Market Clearing Price, in dollars per megawatt hour (\$/MWh) as determined by the Independent System Operator - New England, or its successor (ISO-NE). The Monthly Average Market Clearing Price is calculated monthly by ISO-NE and is equal to the arithmetical average of all the hourly market clearing prices for the applicable month. For purposes of determining the amount owed by Conte Lab to NGC (i) in 2001 and 2002, each 254.31 cfs hours of water use shall be equivalent to 1 MWh; (ii) in 2003, each 236.72 cfs hours of water use shall be equivalent to 1 MWh; and in 2004 and thereafter, each 221.40 cfs hours of water use shall be equivalent to 1 MWh.

(b). In accordance the Agreement, when volumes of water are spilling over Turners Falls Dam in excess of NGC's minimum flow requirements, NGC will, at no charge, transport water, up to the Conte Lab's design maximum use of 200 cfs, if NGC is able to transport such volumes through its power canal and continue to meet its full generation requirements, as determined by NGC in its reasonable discretion. Based on historical water volume and use, the parties anticipate that such additional water use at no charge will typically be available during the months of April and May.

(c). NGC will advise Conte Lab by phone when volumes of water are spilling over Turners Falls Dam in excess of NGC's minimum flow requirements and water use is being provided at no charge ("on water instruction"). Beginning at midnight subsequent to such notification, Conte Lab shall be entitled to take up to its design maximum use of 200 cfs of water at no charge until notified by NGC that the spill condition has ceased. NGC will advise Conte Lab by phone when volumes of water are no longer spilling over Turners Falls Dam in excess of NGC's minimum flow requirements ("off water use instruction"). Beginning at midnight subsequent to such off water use instruction, Conte Lab shall be entitled to take and pay for such use in accordance with the Agreement and this Amendment and Extension.

5. Conte Lab shall provide NGC with its actual monthly cfs hours water use, in writing, on a calendar quarterly basis, within thirty (30) days after the end of each calendar quarter. NGC shall obtain the Monthly Average Market Clearing Price for each month of the quarter and shall bill Conte Lab for its water use within thirty (30) days of receipt of Conte Lab's quarterly statement of water use. For the period January 1, 2001 through June 30, 2002, Conte Lab shall provide NGC with its cfs hour water use on or before December 30, 2002, and NGC shall bill Conte Lab for said water use on or before January 31, 2003. Conte Lab shall be entitled to use its credit of \$107,187.00 against such billings until such credit has been depleted. When Conte Lab's credit has been depleted, Conte Lab shall pay NGC the quarterly amount due within thirty (30) days of the date of NGC's bill.

6. Unless and until NGC requires Conte Lab to operate and/or install metering equipment in accordance with Paragraph 6 below, Conte Lab shall provide NGC with a written estimate of Conte Lab's monthly water use on a quarterly basis. Conte Lab shall estimate water use in a manner consistent with the water use estimate set forth in the letter dated February 22, 2002. Additionally, in connection with the provision of estimated water use for the preceding quarter, Conte Lab shall advise NGC of its anticipated water use for the next quarter.

7. NGC and Conte Lab recognize that the original agreement requires Conte Lab to meter all water passing through the Turners Falls power canal for use at Conte Lab's facilities. Conte Lab understands and agrees that NGC's determination to accept Conte Lab's estimated, rather than metered, water use for the initial term of the Agreement as set forth in Exhibit B and thereafter until metering is required is not a waiver of NGC's right to require Conte Lab to meter all water usage. Conte Lab further understands and agrees to operate and/or install appropriate meters and meter water usage in accordance with the Agreement upon reasonable notice from NGC.

8. NGC and Conte Lab agree that Conte Lab's use of water from the Turners Falls canal shall be interruptible by NGC in the event ISO-NE places NEPOOL Operating Procedure No. 4, Action During a Capacity Deficiency, as it may be amended from time to time ("OP 4"), in effect. NGC shall advise Conte Lab promptly if and when it receives notice from ISO-NE that implementation of OP 4 may be necessary, and NGC anticipates that it may require Conte Lab to interrupt water use, so as to enable Conte Lab to plan for potential interruption. Upon notice from NGC of the implementation of OP 4 and direction to interrupt its water use, Conte Lab shall discontinue its experimental water use within 24 hours after receipt of said notice, except for a minimal water use of up to 1 cfs for maintenance of on-site fish. Notice of potential and actual interruption in accordance with this Paragraph 7 shall be given to the Lab Director or Head of the Fish Passage Section, or to such other person designated in writing by Conte Lab.

9. This Extension shall be for a term of ten (10) years. Following expiration of the ten year extension, Conte Lab shall have the right to extend the conveyance for successive one (1) year periods upon NGC and Conte Lab's agreement on the consideration to be paid for each extended term. The parties shall begin good faith negotiations to establish the value of such conveyance extensions promptly following Conte Lab's written notice given at least ninety (90) days prior to the end of the then current term of this conveyance. Such notice shall be give no sooner than one hundred eighty (180) days prior to the end of a term.

10. Notices, bills and other communications under the Agreement and this Extension shall be mailed or delivered as follows:

(a) To NGC

Station Manager  
Northfield Mountain Project  
99 Millers Falls Road  
Northfield, MA 01360  
(413) 659-4489



(b) To Conte Lab

United States Department of the Interior  
Silvio O. Conte Anadromous Fish Research Center  
P.O. Box 796  
One Migratory Way  
Turners Falls, MA 01376  
(413) 863-9475

IN TESTIMONY WHEREOF, the parties hereto have executed this instrument to be effective as of the day and year first above mentioned.

NORTHEAST GENERATION COMPANY

December 18, 2002

By: William J. Nadeau  
William J. Nadeau  
Vice President

STATE OF CONNECTICUT )  
COUNTY OF Hartford )

ss. Rocky Hill

On this 18<sup>th</sup> day of December, 2002, before me, personally appeared William J. Nadeau, who acknowledged himself to be one of the Vice Presidents of Northeast Generation Company, and that he, as such officer, being authorized to do so, executed the foregoing instrument for the purposes therein contained, by signing the name of the corporation as a free act and deed of said corporation.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

Patricia A. Lerche  
Notary Public

My Commission Expires Aug. 31, 2004

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U.S. GEOLOGICAL SURVEY  
BIOLOGICAL RESOURCES DISCIPLINE  
SILVIO O. CONTE  
ANDROMOUS FISH RESEARCH CENTER

12/23/02  
(Date)

By: Suzette M. Kimball  
Suzette M. Kimball  
Eastern Regional Executive - Biology

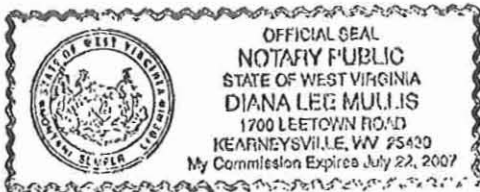
STATE OF WEST VIRGINIA )  
COUNTY OF Jefferson )

ss. \_\_\_\_\_

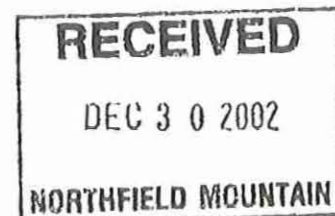
On this 23 day of December, 2002, before me, personally appeared Suzette M. Kimball, and acknowledged herself to be the Eastern Regional Executive - Biology, and being authorized to do so, executed the foregoing instrument for the purposes therein contained, and acknowledged the same to be her free act and deed.

IN WITNESS WHEREOF, I hereunto set my hand and official seal.

Diana Lee Mullis  
Notary Public



My Commission Expires July 22, 2007



AMENDMENT AND EXTENSION OF  
CONVEYANCE OF LIMITED INTEREST IN REAL PROPERTY FOR A TERM OF YEARS

EXHIBIT B, REVISION 1

| <u>Month</u> | <u>CFS</u> | <u>Days Use</u> | <u>CFS Hours</u> |
|--------------|------------|-----------------|------------------|
| January      | 20         | 15              | 7,200            |
| February     | 20         | 20              | 9,600            |
| March        | 20         | 20              | 9,600            |
| April*       | 100        | 15              | 36,000           |
| May*         | 150        | 15              | 54,000           |
| June         | 150        | 15              | 54,000           |
| July         | 100        | 10              | 24,000           |
| August       | 20         | 20              | 9,600            |
| September    | 20         | 20              | 9,600            |
| October      | 100        | 15              | 36,000           |
| November     | 100        | 15              | 36,000           |
| December     | 20         | 15              | 7,200            |

\*Months in which there are days when volumes of water are typically spilling over Turners Falls Dam in excess of NGC's minimum flow requirements and water will be supplied free of charge.

file  
copy

**SECOND AMENDMENT AND EXTENSION OF CONVEYANCE  
OF LIMITED INTEREST IN REAL PROPERTY FOR A TERM OF YEARS**

This Second Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years (the “**Second Extension**”) is made effective as of the first day of January, 2011 by and between FirstLight Hydro Generating Company (“**FirstLight**”) as successor in interest to Northeast Generation Company (“**NGC**”) which was in turn successor in interest to Western Massachusetts Electric Company (“**WMECO**”) as Conveyor, and the United States of America, acting by and through the Secretary of the Interior, U.S. Geological Survey, Biological Resources Discipline, having an office at the Silvio O. Conte Anadromous Fish Research Center (“**Conte Lab**”), as Conveyee.

---

**RECITALS:**

- A. WMECO and Conte Lab (acting through the United States Fish and Wildlife Service) were parties to a Conveyance of Limited Interest in Real Property for a Term of Years dated May 25, 1988 (as amended and extended, the “**Agreement**”), the initial term of which expired on December 31, 2000.
- B. In accordance with the terms of the Agreement, NGC (as successor to WMECO) and Conte Lab entered into that certain Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2001 (the “**First Extension**”).
- C. The First Extension extended the term of the Agreement for ten (10) years, to December 31, 2010, and provided that Conte Lab has the right to additional extensions of the Agreement thereafter on a year-to-year basis upon mutual agreement on the consideration to be paid for each such extension, such right to be exercised upon ninety (90) days notice by Conte Lab to Conveyor of its desire to so extend.
- D. Conte Lab has advised FirstLight (as successor to NGC) of its desire to extend the term of the Agreement for an additional ten (10) years commencing on the effective date hereof, and FirstLight has agreed to waive the requirement for ninety days’ notice for this extension and to grant such requested extension.

**AGREEMENTS:**

NOW, THEREFORE, in consideration of the provisions hereof, and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the parties do hereby agree as follows:



1. Notwithstanding the terms of the First Extension regarding year-to-year extensions, Conte Lab shall continue to have the rights granted to it as Conveyee under the Agreement for an extended term of ten (10) years from January 1, 2011 through December 31, 2020 subject to all other terms and conditions of the Agreement.
2. Conte Lab shall continue to have the use of waters in the Turners Falls power canal in accordance with the Agreement on the economic terms set forth in the First Extension and subject to the credit described therein.
3. The value of the credit as of September 30, 2010 was \$68,562.59.
4. The notice provision set forth in paragraph no. 10 of the First Extension is hereby modified as to the Conveyor only, by deleting subparagraph (a) thereof and substituting therefor the following:

(a) To FirstLight:

FirstLight Hydro Generating Company  
Northfield Mountain Project  
99 Millers Falls Road  
Northfield, MA 01360  
Attention: Station Manager  
Tel. 413-659-4489

With a copy to:

FirstLight Hydro Generating Company  
c/o FirstLight Power Resources, Inc.  
20 Church Street, 16<sup>th</sup> floor  
Hartford, CT 06103  
Attention: Legal Department  
Tel. 860-895-6973

5. Except as hereby modified, all terms of the Agreement remain unmodified and are in full force and effect.

IN WITNESS WHEREOF, the parties have set their hands as of the date first written above.

FIRSTLIGHT HYDRO GENERATING COMPANY

By:   
Name: John S. Howard  
Title: STATION MANAGER

U.S. GEOLOGICAL SURVEY  
BIOLOGICAL RESOURCES DISCIPLINE  
SILVIO O. CONTE ANADROMOUS FISH RESEARCH CENTER

By:   
Name: William Lellis  
Title: Branch Chief



**THIRD AMENDMENT AND EXTENSION OF CONVEYANCE  
OF LIMITED INTEREST IN REAL PROPERTY FOR A TERM OF YEARS**

This Third Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years (the “**Third Extension**”) is made effective as of the first day of January 2021 by and between FirstLight MA Hydro LLC (“**FirstLight**”) as successor in interest to FirstLight Hydro Generating Company (“**FirstLight**”) which was in turn successor in interest to Northeast Generation Company (“**NGC**”) which was in turn successor in interest to Western Massachusetts Electric Company (“**WMECO**”) as Conveyor, and the United States of America, acting by and through the Secretary of the Interior, U.S. Geological Survey, Leetown Science Center/Patuxent Wildlife Research Center, having an office at the Silvio O. Conte Anadromous Fish Research Center (“**Conte Lab**”), as Conveyee.

**RECITALS:**

- A. WMECO and Conte Lab (acting through the United States Fish and Wildlife Service) were parties to a Conveyance of Limited Interest in Real Property for a Term of Years dated May 25, 1988 (as amended and extended, the “**Agreement**”), the initial term of which expired on December 31, 2000.
- B. In accordance with the terms of the Agreement, NGC (as successor to WMECO) and Conte Lab entered into that certain Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2001 (the “**First Extension**”).
- C. In accordance with the terms of the Agreement, FirstLight (as successor to NGC and WMECO) and Conte Lab entered into that certain Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2011 (the “**Second Extension**”).
- D. The Second Extension extended the term of the Agreement for ten (10) years, to December 31, 2020 and provided that Conte Lab has the right to additional extensions of the Agreement thereafter on a year-to-year basis upon mutual agreement on the consideration to be paid for each such extension, such right to be exercised upon ninety (90) days notice by Conte Lab to Conveyor of its desire to so extend.
- E. Conte Lab has advised FirstLight (as successor to NGC) of its desire to extend the term of the Agreement for an additional ten (10) years commencing on the effective date hereof, and FirstLight has agreed to waive the requirement for ninety days’ notice for this extension and to grant such requested extension.

**AGREEMENTS:**

NOW, THEREFORE, in consideration of the provisions hereof, and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the parties do hereby agree as follows:

1. Notwithstanding the terms of the First Extension regarding year-to-year extensions, Conte Lab shall continue to have the rights granted to it as Conveyee under the Agreement for an extended term of ten (10) years from January 1, 2021 through December 31, 2030 subject to all other terms and conditions of the Agreement.
2. Conte Lab shall continue to have the use of waters in the Turners Falls power canal in accordance with the Agreement on the economic terms set forth in the First Extension and subject to the credit described therein.
3. The value of the credit as of September 30, 2020 was **\$57,083.32**.
4. The notice provision set forth in paragraph no. 10 of the First Extension is hereby modified as to the Conveyor only, by deleting subparagraph (a) thereof and substituting therefor the following:

(a) To FirstLight:

FirstLight Power  
Northfield Mountain Project  
99 Millers Falls Road  
Northfield, MA 01360  
Attention: Sr Ops Manager  
Tel. 413-659-4489

With a copy to:

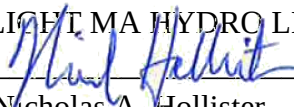
FirstLight Power  
111 South Bedford Street, Suite 103  
Burlington, MA 01803  
Attention: Legal Department  
Tel. 781-653-4240

5. Except as hereby modified, all terms of the Agreement remain unmodified and are in full force and effect.



IN WITNESS WHEREOF, the parties have set their hands as of the date first written above.

FIRSTLIGHT MA HYDRO LLC

By:  12/15/2020

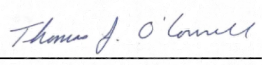
Name: Nicholas A. Hollister

Title: Senior Operations Manager, North

U.S. GEOLOGICAL SURVEY

LEETOWN SCIENCE CENTER/PATUXENT WILDLIFE RESEARCH CENTER

SILVIO O. CONTE ANADROMOUS FISH RESEARCH CENTER

By:  12/10/2020

Name: Thomas J. O'Connell

Title: Center Director

## **EXHIBIT C**

**RELEASE**

This Release is made this 24th day of June 2024, by and between FirstLight MA Hydro LLC, a corporation having a principal place of business at Burlington, MA, herein referred to as the Grantor, and THE UNITED STATES OF AMERICA, 1849 "C" Street, N.W., (Code 2540), Washington, DC 20240, hereinafter referred to as Grantee.

**WITNESSETH:**

**WHEREAS**, the Grantor is the owner of certain real property formerly owned by Western Massachusetts Electric Company in the Town of Montague, Massachusetts, described as Tracts 10, R, M, M-1 in that certain report prepared by Roger R. Tornstrom, Land Surveyor, dated December 1986 and revised February 1988 and recorded in the Franklin County Registry of Deeds at Book 2222, page 168, and;

**WHEREAS**, Grantor's predecessor in interest, the said Western Massachusetts Electric Company, granted an easement to Grantee on May 25, 1988, via a Deed of Easement recorded in the Franklin County Registry of Deeds at Deed Book 2222, page 154, and;

**WHEREAS**, the said Deed of Easement, at paragraph 2(a), recorded at Deed Book 2222, page 156, states that:

The Grantee shall install at least four (4) gates along the Access Road and Service Road at the locations shown on the Plan.

**WHEREAS**, the Grantee has removed two of the four gates originally constructed.

**WHEREAS**, the said Deed of Easement, at paragraph 2(c), recorded at Deed Book 2222, page 156, states that:

At the close of each day during which the Grantee's laboratory facilities are open, the Grantee shall patrol the Roadway and arrange for the removal of all unauthorized vehicles from the Easement Area. If the Grantor elects to allow public access for additional periods, it shall notify the Grantee's personnel at the laboratory and the Grantor shall be responsible for arranging removal of motor vehicles when it closes the easement area to public use.

**WHEREAS**, the Grantor and Grantee agree that having Grantee patrol the Roadway and arrange the removal of vehicles is no longer either feasible or desirable, and;

**WHEREAS**, the Deed of Easement at subparagraph (e) and (f), recorded at Deed Book 2222, page 163 states that:

(e) Once constructed, the Grantee shall maintain all facilities in good, safe, and lawful condition.

(f) In the event of erosion or washout within the Easement Area due to the exercise of the rights granted herein, the Grantee shall repair same or in the alternative request that such work be performed by the Grantor, in which case the Grantee shall reimburse the Grantor for all costs reasonably incurred for such restoration.

**WHEREAS**, the Access Road and Service Road (each as identified in the Easement) see significant use by Grantor both for maintenance of its power generation facilities and for public recreational purposes under the license issued to it by the Federal Energy Regulatory Commission for the Turners Falls Hydroelectric Project (FERC no. P-1889), which creates maintenance responsibilities Grantee cannot and should not bear exclusively,

**NOW THEREFORE**, the Grantor and Grantee do modify the Deed of Easement as follows:

1. Grantor, as a free gift and donation, on behalf of itself, its successors and assigns, does hereby irrevocably release the Grantee from the said obligation at Paragraph 2(c), and the Parties hereby amend the Deed of Easement to omit the said Paragraph 2(c).
2. Grantor and Grantee do amend the paragraphs recorded at Deed Book 2222, page 163 to read:

(e) Once constructed, the Grantee shall maintain all facilities in good, safe, and lawful condition, provided, however, that Grantor shall maintain the Access Road and Service Road, including the G Street entrance gate constructed pursuant to Section 2 and the bridge constructed pursuant to Section 4, paragraph(x). Grantee may contribute to such maintenance as funds allow and as agreed between Grantor and Grantee. Snow removal will continue to be governed by paragraph 1(d).

(f) In the event of erosion or washout within the Easement Area due to the Grantee's exercise of the rights granted herein, the Grantee shall repair same or in the alternative request that such work be performed by the Grantor, in which case the Grantee shall reimburse the Grantor for all costs reasonably incurred for such restoration

(g) Grantee shall maintain the gate to the Research Laboratory parking lot at its sole expense.

No other changes to the terms of the Easement are hereby made.

IN WITNESS WHEREOF, the parties have set their hands as of the date first written above.

**FirstLight MA Hydro LLC**

By: Justin Trudell  
Name: Justin Trudell  
Title: President and Chief Executive Officer  
Address: 100 District Ave, Suite 102  
Burlington, MA 01803

Date: 6/24/2024

**U.S. Department of the Interior**

By: MICHAEL TUPPER  
Name: Michael H. Tupper  
Title: U.S. Geological Survey, Regional Director, Northeast Region  
Address: 12201 Sunrise Valley Drive, Reston, VA 20192  
Date: \_\_\_\_\_

Digitally signed by MICHAEL  
TUPPER  
Date: 2024.06.13 12:45:50 -04'00'

## **EXHIBIT D**



**FOURTH AMENDMENT OF CONVEYANCE OF LIMITED INTEREST IN REAL  
PROPERTY FOR A TERM OF YEARS**

This Fourth Amendment of Conveyance of Limited Interest in Real Property for a Term of Years (the “Fourth Amendment”) is made effective as of the first day of April 2024 by and between FirstLight MA Hydro LLC (“FirstLight”) as successor in interest to FirstLight Hydro Generating Company which was in turn successor to Northeast Generation Company (“NGC”) which was in turn successor in interest to Western Massachusetts Electric Company (“WMECO”) as Conveyor, and the United States of America, acting by and through the Secretary of the Interior, U.S. Geological Survey, Biological Resources Discipline, having an office at the Silvio O. Conte Anadromous Fish Research Center (“Conte Lab”), as Conveyee.

**RECITALS:**

- A. WMECO and Conte Lab (acting through the United States Fish and Wildlife Service) were parties to a Conveyance of Limited Interest in Real Property for a Term of Years dated May 25, 1988 (as amended and extended, the “Agreement”), the initial term of which expired on December 31, 2000.
- B. In accordance with the terms of the Agreement, NGC (as successor to WMECO) and Conte Lab entered into that certain Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2001 (the “First Extension”).
- C. The First Extension extended the term of the Agreement for ten (10) years, to December 31, 2010, and provided that Conte Lab has the right to additional extensions of the Agreement thereafter on a year-to-year basis upon mutual agreement on the consideration to be paid for each such extension, such right to be exercised upon ninety (90) days notice by Conte Lab to Conveyor of its desire to so extend.
- D. In accordance with the terms of the Agreement, NGC (as successor to WMECO) and Conte Lab then entered into that certain Second Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2011 (the “Second Extension”).
- E. The Second Extension extended the term of the agreement for ten (10) years, to December 31, 2020, notwithstanding the terms of the First Extension regarding year-to-year extensions.
- F. In accordance with the terms of the Agreement, FirstLight (as successor to FirstLight Hydro Generating Company as successor to NGC) and Conte Lab then entered into that certain Third Amendment and Extension of Conveyance of Limited Interest in Real Property for a Term of Years dated as of January 1, 2021 (the “Third Extension”).

- G. The Third Extension extended the term of the agreement for ten (10) years, to December 31, 2031, notwithstanding the terms of the First Extension regarding year-to-year extensions.
- H. As consideration for the terms of the Conveyance, the United States transferred \$150,000 to the Conveyor, to be held as a credit for payment for use of water. The amount of that Credit, as of March 31, 2024, stands at \$46,660.99. The Parties now wish to amend the terms of the Agreement pertaining to payment for water use and the use of the remaining Credit.

#### **AGREEMENTS:**

**NOW, THEREFORE**, in consideration of the provisions hereof, and for other good and valuable consideration the receipt and sufficiency of which are hereby acknowledged, the parties do hereby agree as follows:

- 1. FirstLight agrees to accept the value of the Credit as full payment for all past and future water use by Conte Lab, and as payment for assuming, as it hereby does, primary maintenance responsibility for the bridge over the Conte Lab water supply, although Conte Lab may contribute to such maintenance as funds permit.
- 2. The notice provision set forth in paragraph no. 4 of the First Extension is hereby modified as to the Conveyor only, by deleting subparagraph (a) thereof and substituting therefor the following:

(a) To FirstLight:

FirstLight Power  
Northfield Mountain Project  
99 Millers Falls Road  
Northfield, MA 01360  
Attention: Sr Ops Manager  
Tel. 413-659-4489

With a copy to:

FirstLight Power  
100 District Ave, Suite 102  
Burlington, MA 01803  
Attention: Legal Department  
Tel. 781-653-4240

- 3. Except as hereby modified, all terms of the Agreement remain unmodified and are in full force and effect.

IN WITNESS WHEREOF, the parties have set their hands as of the date first written above.

**FirstLight MA Hydro LLC**

By: Justin Trudell

Name: Justin Trudell

Title: President and Chief Executive Officer

Address: 100 District Ave, Suite 102

Burlington, MA 01803

Date: 6/24/2024

**U.S. Department of the Interior**

THOMAS

By: O'CONNELL

Digitally signed by THOMAS  
O'CONNELL  
Date: 2024.06.12 15:26:09  
-04'00'

Name: Thomas J. O'Connell

Title: U.S. Geological Survey, Center Director, Eastern Ecological Science

Center Address: 11649 Leetown Road, Kearneysville, WV 25430

Date: June 12, 2024

### **CERTIFICATE OF SERVICE**

Pursuant to Rule 2010 of the Commission's Rules of Practice and Procedure, 18 C.F.R. § 385.2010 (2023), I hereby certify that I have this day served the foregoing documents upon each person designated on the official service list compiled by the Secretary in this proceeding.

Dated at Washington, DC, this 28<sup>th</sup> day of June, 2024.

/s/ Mealear Tauch

Mealear Tauch

Van Ness Feldman, LLP

2000 Pennsylvania Avenue, NW

Suite 6000

Washington, DC 20006

[mzt@vnf.com](mailto:mzt@vnf.com)